Vinod vs State Of U.P. on 13 December, 2019

Author: Virendra Kumar Srivastava

Bench: Virendra Kumar Srivastava

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HIGH COURT OF JUDICATURE AT ALLAHABAD


A.F.R.

Reserved on 07.11.2019

Delivered on 13.12.2019


Court No. - 83


Case :- CRIMINAL APPEAL No. - 119 of 2019


Appellant :- Vinod

Respondent :- State Of U.P.

Counsel for Appellant :- Anurag Mishra

Counsel for Respondent :- G.A.,Zuber Ahmad Siddiqui

Hon'ble Virendra Kumar Srivastava,J.
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1. This appeal has been filed against the judgment and order dated 24.11.2018, passed by Additional Session Judge, Bansi, District Siddharth Nagar, in Sessions Trial No. 30 of 2018 (State vs. Vinod and another), arising out of Case Crime No. 09 of 2018, Police Station (P.S.) Bansi, District Siddharth Nagar, whereby the accused-appellant (hereinafter referred as ''appellant') has been convicted and sentenced under Section 498-A I.P.C. for two years rigorous imprisonment and fine of Rs. 5,000/- in default whereof, two months additional imprisonment, under Section 304-B I.P.C.

for seven years rigorous imprisonment and under Section 4 of Dowry Prohibition Act, 1961 (in short "D.P. Act') for two years imprisonment and fine of Rs. 5,000/- and in default whereof, for two months further imprisonment. All the sentences have been directed to run concurrently.

2. The prosecution story, in brief, is that the Pooja (deceased), daughter of PW-2 Subhawati, informant, was married to appellant-Vinod, four years prior to the occurrence. On 11.1.2018, at about 10:30 a.m., PW-2 Subhawati, lodged first information report (hereinafter referred as "F.I.R.') at P.S. Bansi, District Siddharth Nagar that her daughter Pooja (deceased), aged about 27 years, was married to the appellant in 2013; after marriage, the appellant and his mother Ishrawati (since acquitted) used to taunt and harass deceased for want of dowry. It was further stated in F.I.R. that deceased Pooja used to tell PW-2, Subhawati regarding the demand of dowry and torture caused by the appellant and Ishrawati (since acquitted) to her, but she, being widow and unable to fulfil the demand of dowry due to poverty, could not do anything in this regard. In the intervening night of 10/11.1.2018, appellant Vinod along with her mother Ishrawati (since acquitted) committed murder of deceased Pooja by strangulation and her dead body is lying at place of occurrence.

3. The said information was entered in G.D. Report (Ex.Ka.1) and was lodged as Crime No. 0009 of 2018, U/s 498-A, 304-B I.P.C. and 3/ 4 of D.P. Act at P.S. Bansi, District Siddharth Nagar by PW-1 Const. Ankit Singh and investigation was entrusted to PW-8 Dy.S.P. Mahendra Singh.

4. Information was given to PW-4, Kesari Nandan Tripathi (Executive Magistrate), Nayab Tehsildar, Bansi for inspecting and conducting inquest of the dead body of deceased, who proceeded to the place of occurrence, inspected the dead body on 11.1.2018 with the help of S.I. Ravi Kant Mani, and prepared the inquest report (Ex.Ka.1), as well as the relevant papers Ex.Ka.5 to Ex.Ka.8 i.e. challan lash, photo lash, letter to C.M.O., letter to R.I., sealed the dead body of deceased and sent it for post-mortem examination.

5. PW-3, Dr. Sanjay Chaudhary, conducted the post-mortem examination on 11.1.2018 and found the following the ante-mortem injuries on the body of deceased;

(i) Ligature mark around neck 25 c.m. in length and 1 to ½ c.m. in breadth. 5 c.m. below right ear lobe, 8 c.m. below left ear lobe and 6 c.m. below the chin.

(ii) Saliva was dribbling out from the mouth.

6. According to him, upon opening the ligature mark, white subcutaneous tissues were found and the bone of neck was normal. According to him, the death of deceased was caused due to asphyxia caused by ante mortem injury.

7. PW-8, Dy.S.P. Mahendra Dev Singh, inspected the place of occurrence, prepared the site plan Ex.Ka.10, recorded the statement of PW-1 Const. Ankit Singh and PW-2 Smt. Shubhavati, arrested the appellant Vinod and another accused Smt. Ishrawati (since acquitted) and recorded their statement. Meanwhile, upon his transfer, the investigation was entrusted to PW-6, Dy.S.P. Uma Shankar Singh who recorded the statement of other witnesses and upon conclusion of investigation,

filed charge-sheet Ex.Ka.9 against the appellant and Smt. Israwati (since acquitted) before competent Magistrate.

8. The Chief Judicial Magistrate took the cognizance and, since the offence was exclusively triable by the Session Court, committed it for trial, after providing the relevant copies of police papers.

9. The learned Trial Judge framed charges against the appellant-Vinod and Smt. Ishrawati (since acquitted) under section 498-A, 304-B I.P.C. and ¾ D.P. Act alternatively under Section 302 I.P.C. who denied the charges and claimed to be tried.

10. Prosecution in order to prove its case, examined PW-1 Const. Ankit Singh, PW-2 Smt. Subhavati, PW-3 Dr. Sanjay Chaudhary, PW-4 Kesari Nandan Tiwari, PW-5 Sangeeta, PW-6 Umashankar Singh, PW-7 Gyandas and PW-8 Mahendra Dev Singh. PW-2 Subhawati, PW-5 Sangeeta and PW-7 Gyan Das are the witnesses of fact and rest witnesses are formal witness.

11. After prosecution evidence, statement of appellant-Vinod and Smt. Ishrawati (since acquitted) U/s 313 Cr.P.C. were recorded, wherein, they denied the prosecution evidence and claimed that they have been falsely implicated in this case. An opportunity was given to them to lead the defence evidence in order to explain the prosecution evidence, DW-1 Ram Sundar was examined by them in defence.

12. Learned Trial Court, by the aforesaid impugned order, while acquitting Smt. Ishrawati, mother-in-law of the deceased, convicted the appellant-Vinod as above, aggrieved whereof, he has preferred this appeal.

13. Heard learned counsel for the appellant, learned A.G.A. for the State and perused the record.

14. Learned counsel for the appellant has submitted that the appellant is innocent and has been falsely implicated in this case. The marriage of deceased was solemnized more than 10 years prior to the occurrence; appellant had neither demanded any dowry nor committed any cruelty or harassment to deceased soon before her death; and medical evidence is not corroborated by the ocular evidence as the deceased had committed suicide due to frustration. Learned counsel further submitted that the prosecution has failed to produce either any independent witness or any eye witness. The whole prosecution story is based on the statement of PW-2, Subhawati, mother of deceased who is an interested witness and hence not reliable. Prosecution has miserably failed to prove its case beyond reasonable doubt. The impugned judgment and order is illegal, unjustified and liable to be set aside.

15. Per-contra, learned A.G.A. and learned counsel for the informant have submitted that the deceased has been found dead inside the house of appellant, husband of deceased. Learned counsels further submitted that due to demand of dowry, appellant used to torture and harass the deceased and caused her death by strangulation. F.I.R. was lodged without any delay and as per medical examination report, deceased had died due to strangulation. Learned counsel further submitted that at the time of death of deceased appellant was with her but he did not explain any circumstances

regarding manner or cause of her death. Learned counsel further submitted that the prosecution has succeeded to prove its case beyond reasonable doubt against the appellant. Appeal is liable to be dismissed.

16. I have considered the rival submission of learned counsel for both the parties and perused the record.

17. The offence in question in this case is related to demand of dowry, dowry death, harassment of victim for demand of dowry, cruelty and harassment to the deceased by her husband.

18. Before considering the evidence available on record, led by both parties, in the light of argument advanced by the learned counsel for the parties, it is necessary to refer the relevant provision of law relating to the offence in question i.e. Section 304-B and Section 498-A I.P.C., Section 113-B of Indian Evidence Act and Section 2 Dowry Prohibition Act, 1961 which are as under:-

> Section 304-B (1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called "dowry death", and such husband or relative shall be deemed to have caused her death. Explanation.--For the purpose of this sub-section, "dowry" shall have the same meaning as in section 2 of the Dowry Prohibition Act, 1961.
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> (2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life.

Section 498-A Husband or relative of husband of a woman subjecting her to cruelty.--Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine. Explanation.--For the purpose of this section, "cruelty" means

(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

Section 113-B of Indian Evidence Act-Presumption as to dowry death.--When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman has been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the Court shall presume that such person had caused the dowry death.

Explanation.--For the purposes of this section, "dowry death" shall have the same meaning as in section 304B, of the Indian Penal Code.

Section 2 of Dowry Prohibition Act-Definition of "dowry'. In this Act, "dowry" means any property or valuable security given or agreed to be given either directly or indirectly

(a) by one party to a marriage to the other party to the marriage; or

(b) by the parent of either party to a marriage or by any other person, to either party to the marriage or to any other person.

19. The above provision, related with dowry death, clearly shows that if a death of any women is caused within 7 years of her marriage by burn "or otherwise than under normal circumstances" and it is shown that if soon before the death of such women, she was subjected to cruelty or harassment by her husband or any relative of her husband, in connection with demand for dowry and if the prosecution succeeds to prove the above ingredient, such death shall be called as dowry death. In addition to above Section 113-B of Indian Evidence Act, further provides that in such cases, if it is shown that a women was subjected, soon before her death by the accused, to cruelty or harassment for in or connection with any demand of dowry, the Court shall presume that such accused had caused the dowry death.

20. According to PW-1 Ankit singh, F.I.R. (Ex.Ka.1) was lodged by him on the information given by PW-2 Shubhawati on 11.1.2018 at about 10:30 a.m. under Section 498-A, 304-B I.P.C. and ¾ D.P. Act. As per the prosecution case, the occurrence was happened in the intervening night of 10/11.1.2018 and PW-2 Shubhawati lodged the F.I.R. when she was informed by PW-5 Sangeeta on 11.1.2018 at about 5:00 a.m. and upon that information PW-2 Shubhawati came to the place of occurrence, saw the dead body of her daughter and lodged the F.I.R. Thus, there is no delay in lodging the F.I.R.

21. So far as the submission of learned counsel for the appellant that no independent witness has been produced and the witnesses produced by the prosecution are relative of deceased, hence the prosecution is doubtful, is concerned, it is settled principle of criminal law that merely on the ground of non production of independent witness, prosecution case can not be thrown out. Offences relating to dowry death are mostly committed inside the house of the accused and in such cases there is at least possibility of independent witness because most of the evidence, facts and circumstances are within the knowledge of the accused person who usually do not state anything regarding the occurrence. In such cases, in normal circumstances, neighbours, servants and family member of the accused also do not come forward to disclose anything regarding the occurrence, in order to save the accused.

22. Hon'ble Supreme Court in Vajresh Venkatray Anvekar vs. State of Maharashtra (2013) 3 SCC 462, while discussing the nature of evidence required for offences relating to dowry death has held as under:-

> 17. The learned Sessions Judge has refused to rely upon the evidence of the parents, brother and brothers-in-law of Girija primarily on the ground that they are interested witnesses. We find this approach to be very unfortunate. When a woman is subjected to ill-treatment within the four walls of her matrimonial house, ill-treatment is witnessed only by the perpetrators of the crime. They would certainly not depose about it. It is common knowledge that independent witnesses like servants or neighbours do not want to get involved. In fact, in this case, a maid employed in the house of the appellant who was examined by the prosecution turned hostile.
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> 18. It is true that chances of exaggeration by the interested witnesses cannot be ruled out. Witnesses are prone to exaggeration. It is for the trained judicial mind to find out the truth. If the exaggeration is of such nature as to make the witness wholly unreliable, the court would obviously not rely on him. If attendant circumstances and evidence on record clearly support and corroborate the witness, then merely because he is interested witness he cannot be disbelieved because of some exaggeration, if his evidence is otherwise reliable. In this case, we do not find any such exaggeration qua the appellant. The witnesses have stood the test of cross- examination very well. There are telltale circumstances which speak volumes. Injuries suffered by Girija prior to the suicide cannot be ignored. The pathetic story of Girija's woes disclosed by her parents, her brother and her brothers-in-law deserves to be accepted and has rightly been accepted by the High Court. A1 and A3 have been acquitted by the Sessions Court. That acquittal has been confirmed by the High Court. The State has not appealed against that order. We do not want to therefore go into that aspect. But, we must record that we are not happy with the manner in which learned Sessions Judge has ignored vital evidence.

(Emphasis Supplied)

23. In addition to above, it is also settled principle of law that the evidence, produced by the relative of the deceased, cannot be ignored only on the ground that they are relative because the close relative do not prefer to implicate a false person, leaving aside the real culprit. If it is alleged by the defence, it has to be established by the defence, as to why the nearest relative of deceased are falsely implicating him by leaving aside the real culprit. In this case, the evidence led by the PW-2 Subhawati, PW-5 Sangeeta and PW-5 Gyan Das who are nearest relative of deceased are reliable and their evidence cannot be discarded only on the ground that they are relative of the deceased. Thus, the submission raised by the learned counsel for the appellant, in this regard, has no force.

24. It is pertinent to note at this juncture that for the offence of dowry death, homicidal death of the women is not necessary. It includes unnatural as well as accidental death also. It is also necessary to note that section 304-B I.P.C. as well as 113-B of Indian Evidence Act, both the provision state that prosecution is not required to prove the factum of cruelty or harassment by the accused with the deceased soon before death of deceased, beyond reasonable doubt because in these provisions, burden has been laid on prosecution only to show that soon before the death of deceased, she was subjected to cruelty or harassment in connection with demand of dowry by her husband or relatives

of her husband. In addition to above, the word soon before her death does not mean just soon before her death. It means that there should be a proximity between the cruelty or harassment related to the demand of dowry and unnatural death of deceased. Hon'ble Supreme Court while discussing Section 304 B I.P.C., Section 113-B Indian Evidence Act and definition of dowry as provided in Section 2 of the D.P. Act, in Maya Devi vs. State of Haryana AIR 2016 SC 125 has held as follows:-

> "16. To attract the provisions of Section 304B, one of the main ingredients of the offence which is required to be established is that "soon before her death" she was subjected to cruelty or harassment "for, or in connection with the demand for dowry". The expression "soon before her death" used in Section 304B IPC and Section 113B of the Evidence Act is present with the idea of proximity test. In fact, learned senior counsel appearing for the appellants submitted that there is no proximity for the alleged demand of dowry and harassment. With regard to the said claim, we shall advert to while considering the evidence led in by the prosecution. Though the language used is "soon before her death", no definite period has been enacted and the expression "soon before her death" has not been defined in both the enactments. Accordingly, the determination of the period which can come within the term "soon before her death" is to be determined by the courts, depending upon the facts and circumstances of each case. However, the said expression would normally imply that the interval should not be much between the cruelty or harassment concerned and the death in question. In other words, there must be existence of a proximate and live link between the effect of cruelty based on dowry demand and the death concerned. If the alleged incident of cruelty is remote in time and has become stale enough not to disturb the mental equilibrium of the woman concerned, it would be of no consequence."

(Emphasis Supplied)

25. Hon'ble Court further in Maya Devi (supra), discussing the law laid down by the Apex Court in Bansi Lal vs. State of Harayana AIR 2011 SC 691; Mustafa Shahadal Shaikh vs. State of Maharashtra AIR 2013 SC 851 and Ramesh Vithal Patil vs. State of Karnataka (2014) 11 SCC 516; regarding the nature of proof required for dowry death, has held as under:-

> " 21. Section 304B IPC does not categorise death as homicidal or suicidal or accidental. This is because death caused by burns can, in a given case, be homicidal or suicidal or accidental. Similarly, death caused by bodily injury can, in a given case, be homicidal or suicidal or accidental. Finally, any death occurring "otherwise than under normal circumstances" can, in a given case, be homicidal or suicidal or accidental. Therefore, if all the other ingredients of Section 304B IPC are fulfilled, any death (homicidal or suicidal or accidental) whether caused by burns or by bodily injury or occurring otherwise than under normal circumstances shall, as per the legislative mandate, be called a "dowry death" and the woman's husband or his relative "shall be deemed to have caused her death". The section clearly specifies what constitutes the offence of dowry death and also identifies the single offender or

multiple offenders who has or have caused the dowry death.

22. The key words under Section 113B of the Evidence Act, 1872 are "shall presume" leaving no option with a court but to presume an accused brought before it of causing a dowry death guilty of the offence. However, the redeeming factor of this provision is that the presumption is rebuttable. Section 113B of the Act enables an accused to prove his innocence and places a reverse onus of proof on him or her. In the case on hand, accused persons failed to prove beyond reasonable doubt that the deceased died a natural death. When Kavita allegedly committed suicide, her husband-appellant No.2, though he was not present in the house, was present in his office at M.D. University, Rohtak at the relevant time but he did not make any sincere effort to take her to the hospital which was very near to the place of the incident. Similarly, appellant No. 2 got the deceased examined by DW-2 in order to create an impression that she was struggling with chronic depression but the truth floated upon the surface when the deceased reveals that the accused persons were maltreating her and she had started picking up the ideas of suicide. Lastly, appellant No. 2 falsely informed the court that having learnt about the death of his wife Kavita, he left for Delhi to inform her family members. In fact, the accused never went to Delhi and the complainant received a telephonic message from an unknown person regarding the death of his daughter. So far as Maya Devi- appellant No. 1 herein is concerned, there is no denying the fact that she was working as a teacher in a government school and she was not present at the relevant time at the place of incident but it is very much clear from the evidence on record that both the accused persons had a dominating role in the entire episode and she had always accompanied her son-appellant No. 2 herein to the house of the complainant (PW-3) for the dowry demands. The presumption under Section 113B of the Act is mandatory may be contrasted with Section 113A of the Act which was introduced contemporaneously. Section 113A of the Act, dealing with abetment of suicide, uses the expression "may presume". This being the position, a two-stage process is required to be followed in respect of an offence punishable under Section 304-B IPC: it is necessary to first ascertain whether the ingredients of the Section have been made out against the accused; if the ingredients are made out, then the accused is deemed to have caused the death of the woman but is entitled to rebut the statutory presumption of having caused a dowry death. From the evidence on record, we are of the opinion that in the present case Kavita died an unnatural death by committing suicide as she was subjected to cruelty/harassment by her husband and in-laws in connection with the demand for dowry which started from the time of her marriage and continued till she committed suicide. Thus, the provisions of Sections 304B and 498A of the IPC will be fully attracted." (Emphasis supplied)

26. Now the question arises, whether, the deceased died within 7 years of her marriage with the appellant; her death was unnatural; and she was subjected to cruelty or harassment, soon before her death, by the appellant, in connection with demand of dowry or not.

27. PW-2 Smt. Subhawati, mother of the deceased, has specifically stated that the marriage of deceased was solemnized with appellant, four years before her death. According to her, she had given dowry as per her capacity; just after the marriage the appellant, his parents and sisters used to demand a motorcycle in dowry and also to harass and torture her. She further stated that 8-10 days prior to of the occurrence, the appellant Vinod took away deceased from her house and at that time also, he asked for a motorcycle as a dowry. She has further stated that her daughter Sangeeta (PW-5) informed her on phone that deceased Pooja was killed by her in-laws and on that information, she came to Bansi (appellant's house) and saw that the dead body of Pooja was lying in the outer side of the house of appellant. She further stated that she had lodged the F.I.R. (Ex.Ka.3); police reached the place of occurrence and recovered an iron rod in length about 2.5 ft, a scarf and a mobile charger. She further stated that on perusal of dead body, it appeared that the death was caused by strangulation. According to her, dead body of the deceased was sealed before her and inquest report (Ex.Ka.4) was also prepared before her, whereupon she had also put her thumb impression.

28. PW-5, Smt. Sangeeta, sister of deceased, also stated that deceased, her youngest sister, was married with appellant Vinod, just 4 years before the occurrence. Stating that at the time of marriage, dowry was given to appellant according to her capacity; appellant was not satisfied with dowry; he was demanding a motorcycle in dowry and was harassing and torturing the deceased for want of dowry, she further stated that deceased Pooja used to tell her the act of harassment and demand of dowry made to her by the appellant and his relatives, whereupon she used to pacify her. She further stated that on 10th January, 2018, she was in Mumbai; appellant Vinod, at about 4:00 O' clock in the morning, informed her that deceased was not feeling well and was in critical condition. Thereafter, he switched off his phone but as she rang after an hour, he informed that the deceased had died. She further stated that thereafter, she informed her mother (PW-2) that deceased had been murdered by her in-laws.

29. PW-7, Gyan Das, maternal uncle of the deceased, has also stated that deceased was married with the appellant just 4 years before her death and when he used to visit the deceased's matrimonial house, she used to tell him that appellant and his family members used to demand a motorcycle and also used to harass and torture her.

30. PW-3 Dr. Sanjay Chaudhary stating the ante mortem injuries caused to deceased (noted in para no. 5) has specifically stated that the deceased had died due to asphyxia caused by ante-mortem injury. According to him, 500 gm. semi digested food was also found in stomach of deceased.

31. PW-8, Dy. SP Mahendra Singh, Investigating Officer, who inspected the place of occurrence and prepared site plan (Ex.Ka.10) has stated that death of deceased was caused in her bed room.

32. PW-6 Dy. SP Umashanker Singh, who took over the investigation after PW-8 Mahendra Singh, has stated that after recording statement of witnesses and inspecting the panchnama, post-mortem report and other documents, he concluded the investigation and filed charge-sheet (Ex.Ka.9)

33. In addition to above, in F.I.R. (Ex.Ka.3) it has been specifically mentioned that marriage of deceased with appellant was solemnized in 2013 and the incident happened in the intervening night

of 10/11.1.2018. PW-2 Smt. Subhavati, PW-5 Sangeeta and PW-7 Gyandas have specifically stated that the deceased was married with applicant four years prior to the occurrence. In cross-examination PW-2 Shubhawati, although has stated that, at the time of marriage, deceased was aged about 15-16 years but again she stated that deceased was graduate. She was not further cross examined on the point of duration of marriage of deceased. In cross-examination, PW-5 Sangeeta further said that the deceased was married with appellant in 2013. Thus the prosecution have successfully proved that unnatural death of deceased was caused within 7 years of her marriage and the submission made by the learned counsel for the appellant has no force.

34. In this case, the nature of cause of death is not disputed because it is admitted fact that the death of deceased was not natural. According to PW-2 Subhawati, PW-5 Sangeeta and PW-7 Gyan Das, the death of deceased was caused by the appellant-Vinod along with his family member for demand of dowry and deceased was subjected to cruelty and harassment by them just before her death in connection with dowry. It is very pertinent to note at this juncture that for the first time PW-2 Subhavati when she reached the place of occurrence, she found that the dead body of deceased was lying in the outer side of the house of appellant. According to PW-3, Dr. Sanjay Chaudhary, ligature mark was present around the neck of deceased. This witness has not found any gap in ligature mark which is generally found in suicidal case by hanging. In addition to above, no rope was found on the place of occurrence by Investigating Officer PW-8 Dy.S.P. Mahendra Singh whereas from perusal of site plan (Ex.Ka.10) it transpires that only two rooms are inside the house of appellant and deceased had died in one room where bed was also lying.

35. According to PW-5, Sangeeta, the appellant Vinod rang her at 4:00 O' clock in the morning of 10th January, 2018 and informed that deceased Pooja was in critical condition. Thereafter, he switched off his phone and after one hour when she (PW-5) again rang him, he informed that the deceased had died. This clearly shows that at the time of death of deceased, the appellant was with the deceased.

36. Appellant Vinod has not stated in his statement under section 313 Cr.P.C., as to how, deceased had died, whereas her death was caused inside his house. He has also not explained as to how the dead body of deceased was laid, out side his house. He has also not specifically denied his presence, at the time of occurrence, inside his house. He has also not explained or disclosed anything regarding the circumstances related to the cause of death, cruelty or harassment just before the death of deceased, demand of motorcycle as dowry and duration of his marriage with deceased. DW-1 Ram Sundar has stated that he got the marriage of appellant Vinod with Pooja solemnized 10 years ago; there was no demand of dowry by the appellant; and there was no harassment or torture with deceased by the appellant. In cross examination, he has specifically admitted that he has also solemnized two other marriages. He further admitted that appellant Vinod is his relative (brother-in-law). This witness neither normally resides at the house of appellant nor was present at the time of occurrence at the house of appellant. Appellant being husband of deceased has to disclose the exact duration or year of his marriage, facts and circumstances as well as cause of death of deceased, in his statement under Section 313 Cr.P.C., but he did not disclosed it and only answered that prosecution version is false. Similarly, if the appellant was with the deceased at the time of occurrence, it was also his duty to explain the circumstances that how the death of deceased

was caused and if she committed suicide, what effort was made by him to prevent her to take such step. Failure, to explain circumstances or produce any reliable evidence in defence against the evidence produced by the prosecution regarding unnatural death of deceased, demand of dowry, cruelty and harassment to deceased, duration of marriage and, to discharge the burden as required U/s 113 B Evidence Act and mere denial to the prosecution evidence put to him U/s 313 Cr.P.C., strengthen the culpability of appellant in committing the offence and the statement of DW-1 Ram Sundar is not sufficient to controvert the prosecution version.

37. Hon'ble Supreme Court Trimukh Maroti Kirkan Vs. State of Maharashtra 2006 (10) SCC 681 where accused was charged for committing murder of his wife and it was established by the prosecution that shortly before the offence, he was seen with his wife inside his house where he and his wife were normally used to reside. Hon'ble Supreme Court has held as under:

> "Where an accused is alleged to have committed the murder of his wife and the prosecution succeeds in leading evidence to show that shortly before the commission of crime they were seen together or the offence takes placed in the dwelling home where the husband also normally resided, it has been consistently held that if the accused does not offer any explanation how the wife received injuries or offers an explanation which is found to be false, it is a strong circumstance which indicates that he is responsible for commission of the crime. In Nika Ram v. State of Himachal Pradesh AIR 1972 SC 2077 it was observed that the fact that the accused alone was with his wife in the house when she was murdered there with 'khokhri' and the fact that the relations of the accused with her were strained would, in the absence of any cogent explanation by him, point to his guilt. In Ganeshlal v. State of Maharashtra (1992) 3 SCC 106 the appellant was prosecuted for the murder of his wife which took place inside his house. It was observed that when the death had occurred in his custody, the appellant is under an obligation to give a plausible explanation for the cause of her death in his statement under Section 313 Cr.P.C. The mere denial of the prosecution case coupled with absence of any explanation were held to be inconsistent with the innocence of the accused, but consistent with the hypothesis that the appellant is a prime accused in the commission of murder of his wife. In State of U.P. v. Dr. Ravindra Prakash Mittal AIR 1992 SC 2045 the medical evidence disclosed that the wife died of strangulation during late night hours or early morning and her body was set on fire after sprinkling kerosene. The defence of the husband was that wife had committed suicide by burning herself and that he was not at home at that time. The letters written by the wife to her relatives showed that the husband ill-treated her and their relations were strained and further the evidence showed that both of them were in one room in the night. It was held that the chain of circumstances was complete and it was the husband who committed the murder of his wife by strangulation and accordingly this Court reversed the judgment of the High Court acquitting the accused and convicted him under Section 302 IPC. In State of Tamil Nadu v. Rajendran (1999) 8 SCC 679 the wife was found dead in a hut which had caught fire. The evidence showed that the accused and his wife were seen together in the hut at about 9.00 p.m. and the accused came out in the morning

> through the roof when the hut had caught fire. His explanation was that it was a case of accidental fire which resulted in the death of his wife and a daughter. The medical evidence showed that the wife died due to asphyxia as a result of strangulation and not on account of burn injuries. It was held that there cannot be any hesitation to come to the conclusion that it was the accused (husband) who was the perpetrator of the crime."

(Emphasis supplied)

38. Hon'ble Supreme Court in Ramesh Vithal Patil vs. State of Karnataka (2014) 11 SCC 516, while discussing the provision of Section 304B I.P.C. and relevance of Section 113-B of Evidence Act, 1872, held as under:-

> "There is also another angle to this case. The prosecution has succeeded in proving facts from which a reasonable inference can be drawn that the deceased committed suicide by jumping in the river along with her daughter. The deceased was in the custody of the appellant. She left the appellant's house with the small child. Admittedly, neither the appellant nor any member of his family lodged any missing complaint. The appellant straightway went to the house of the deceased to enquire about her. This conduct is strange. When his wife and small child had left the house and were not traceable the appellant was expected to move heaven and earth to trace them. As to when and why the deceased left the house and how she died in suspicious circumstances was within the special knowledge of the appellant. When the prosecution established facts from which reasonable inference can be drawn that the deceased committed suicide, the appellant should have, by virtue of his special knowledge regarding those facts, offered an explanation which might drive the court to draw a different inference. The burden of proving those facts was on the appellant as per Section 106 of the Evidence Act but the appellant has not discharged the same leading to an adverse inference being drawn against him."

(Emphasis supplied)

39. Lastly, it is also pertinent to note that all the witnesses, produced by the prosecution were put to lengthy cross-examination, but nothing could be elicited by way of cross-examination so as to create doubt about their testimonies. Their testimonies have been well supported by the medical evidence which shows that the deceased had been caused to death within 7 years of her marriage, in unnatural circumstances by the appellant due to demand of dowry and prior to her death, she was also subjected to cruelty for the dowry. Death of deceased was caused inside the house of appellant where his presence has been found natural at the time of occurrence. Appellant has failed to produce any reliable evidence regarding his innocence or to create any doubt in the prosecution evidence. Prosecution witness of fact i.e. PW-2 Subhavati, PW-5 Smt. Sangeeta and PW-7 Gyandas are illiterate, and rustic witnesses. The minor discrepancies in the evidence produced by the prosecution will not overshadow the prosecution version in peculiar facts and circumstances of this case. There is complete consistency and coherence in the examination-in-chief and in the cross examination of

the prosecution witnesses. There is nothing on record to show that the prosecution witnesses had any animus against the appellant so as to implicate him falsely absolving the actual accused.

40. Thus the prosecution has succeeded to prove that deceased Pooja was married with appellant Vinod; she died within 7 years of her marriage, in unnatural circumstances, inside the house of the appellant and she was subjected to cruelty and harassment just soon before her death by the appellant, due to demand of dowry. Appellant has failed to produce any reliable evidence in his defence to rebut or explain the prosecution evidence in view of the statutory presumption as provided under Section 113 B Evidence Act. The learned Trial Court has elaborately discussed the evidence led by the prosecution in the light of argument advanced by the prosecution as well as the defence. The impugned judgment and order requires no interference and liable to be affirmed.

41. Now coming to the question of sentence whether sentence passed by the Trial Court, is just and proper or not.

42. Appellant has been convicted for the offence under Section 304-B and 498-A I.P.C. and under Section 4 of Dowry Prohibition Act. He has been sentenced only for 7 years rigorous imprisonment for the offence under Section 304-B I.P.C., for 2 years and fine of Rs. 5,000/- for the offence under Section 498-A I.P.C. and Section 4 of Dowry Prohibition Act, for each offence. It has been further directed that all the sentences were run concurrently. Thus the maximum sentence, awarded against the appellant, is 7 years.

43. Looking into the nature and gravity of the offence, I am of the view that the punishment awarded by the Trial Court is just and appropriate and requires no interference. Appeal is liable to be dismissed and impugned judgment and order passed by the learned Trial Court is liable to be affirmed.

44. In the light of above discussion, the appeal lacks merit and is hereby dismissed. The impugned judgment and order dated 24.11.2018 passed by Additional Session Judge, Bansi, District Siddharth Nagar in Sessions Trial No. 30 of 2018 (State vs. Vinod and another), is maintained and affirmed.

45. The appellant is in jail.

46. Let a copy of this judgment along with lower court record be sent to the Additional Sessions Judge, Bansi, District Siddharth Nagar for necessary information and compliance.

Order Date :- 13.12.2019 Saurabh